# Pre-Tenancy Compliance Checklist

**England**

12 Example Street, London, SW1A 1AA

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**NON-CONTRACTUAL GUIDANCE**

This checklist is provided as guidance only and does not form part of the tenancy agreement. It summarises key legal obligations for landlords. For detailed requirements, consult the relevant legislation or seek professional legal advice.

## 1. Deposit Protection (Mandatory)

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|---|---|
| ☐ | **Deposit protected within 30 days**<br>If you take a deposit, you must protect it in a government-authorised scheme within 30 days of receiving it. Non-compliance may affect your ability to rely on certain possession routes. |
| ☐ | **Prescribed Information provided**<br>You must provide the tenant with the scheme's Prescribed Information within 30 days. This includes scheme contact details, dispute resolution procedures, and circumstances for deductions. |

*Housing Act 2004, ss.212-215 | The Housing (Tenancy Deposits) (Prescribed Information) Order 2007*

## 2. Gas Safety (Mandatory if gas supplied)

| | |
|---|---|
| ☐ | **Valid Gas Safety Certificate (CP12)**<br>A Gas Safe registered engineer must inspect all gas appliances annually. The certificate must be provided to new tenants before they move in, and to existing tenants within 28 days of the check. |
| ☐ | **Copy provided to tenant before occupation**<br>New tenants must receive a copy before the tenancy begins. Keep proof of provision. |

*Gas Safety (Installation and Use) Regulations 1998*

## 3. Energy Performance Certificate (EPC)

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|---|---|
| ☐ | **Valid EPC with minimum E rating**<br>The property must have an EPC rating of E or above. Properties rated F or G cannot be let unless a valid exemption is registered. The EPC must be valid (less than 10 years old). |
| ☐ | **EPC provided to tenant**<br>Tenants must receive a copy of the EPC free of charge at the earliest opportunity. |

*Energy Performance of Buildings (England and Wales) Regulations 2012 | MEES Regulations 2015*

## 4. Electrical Safety (EICR)

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|---|---|
| ☐ | **Electrical Installation Condition Report (EICR)**<br>A qualified electrician must inspect the electrical installation every 5 years. The report must show the installation is satisfactory (no Code 1 or Code 2 issues unresolved). |
| ☐ | **Copy provided to tenant within 28 days of inspection**<br>New tenants must receive a copy before moving in. Existing tenants within 28 days of inspection. |

*Electrical Safety Standards in the Private Rented Sector (England) Regulations 2020*

## 5. England Written Information and Transition Duties

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|---|---|
| ☐ | **England written information prepared for this tenancy route**<br>For a new England agreement, ensure the tenancy paperwork explains the tenant notice period, section 13 rent increase route, landlord possession process, pets position, bills handling, and the main repair and safety duties. |
| ☐ | **Proof of delivery retained for any statutory information you give**<br>Keep evidence of delivery such as an email receipt, signed acknowledgement, or dated handover note. |
| ☐ | **Any additional England written information or government guidance recorded**<br>If you issue any additional England written information or government guidance for the tenancy, keep proof of delivery with the tenancy file. |

*Renters' Rights Act 2025 guidance | Written information that must be given to tenants*

## 6. Right to Rent Checks (Mandatory)

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|---|---|
| ☐ | **Right to Rent checks completed for all adult occupants**<br>Before the tenancy begins, verify that all adult occupants have the right to rent in England. Check original identity documents and keep copies for the duration of the tenancy plus 1 year. |
| ☐ | **Follow-up checks scheduled (if time-limited right)**<br>If a tenant has a time-limited right to rent, schedule a follow-up check before their permission expires. |

*Immigration Act 2014 & 2016*

## 7. Smoke and Carbon Monoxide Alarms

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|---|---|
| ☐ | **Working smoke alarm on each storey**<br>At least one working smoke alarm must be installed on each storey used as living accommodation. Test on the day the tenancy begins. |
| ☐ | **Carbon monoxide alarm in rooms with fixed combustion appliances**<br>A carbon monoxide alarm is required in any room with a fixed combustion appliance (excluding gas cookers). This includes boilers, gas fires, wood burners, and oil heaters. |
| ☐ | **Alarms tested on day tenancy begins**<br>Confirm all alarms are in working order at the start of the tenancy and keep a record. |

*Smoke and Carbon Monoxide Alarm (Amendment) Regulations 2022*

## 8. Landlord Contact Details

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|---|---|
| ☐ | **Written notice of landlord's name and address provided**<br>Tenants must be informed in writing of the landlord's name and address (not just an agent's details). This is required within 21 days of a written request. |

*Landlord and Tenant Act 1985, s.1*

## 9. HMO Requirements (If applicable)

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|---|---|
| ☐ | **HMO licence obtained (if required)**<br>If the property houses 5+ people from 2+ separate households sharing facilities, it requires a mandatory HMO licence. Some councils also require licensing for smaller HMOs. |
| ☐ | **Fire safety measures in place**<br>HMOs require additional fire safety measures: fire doors, emergency lighting, fire blankets, and clear escape routes. |

*Housing Act 2004 | The Licensing of Houses in Multiple Occupation (Mandatory Conditions of Licences) (England) Regulations 2018*

## Summary Checklist

| Requirement | Status | Date Completed |
|---|---|---|
| Deposit protected | ☐ Yes ☐ N/A | _____ |
| Prescribed Information provided | ☐ Yes ☐ N/A | _____ |
| Gas Safety Certificate provided | ☐ Yes ☐ N/A | _____ |
| EPC provided (rating: ____) | ☐ Yes | _____ |
| EICR provided | ☐ Yes | _____ |
| England written information included | ☐ Yes | _____ |
| Right to Rent checks completed | ☐ Yes | _____ |
| Smoke alarms tested | ☐ Yes | _____ |
| CO alarms tested (if applicable) | ☐ Yes ☐ N/A | _____ |
| HMO licence (if applicable) | ☐ Yes ☐ N/A | _____ |

**Important:** Non-compliance with these requirements may affect enforceability, result in penalties, or leave you exposed to legal claims. This checklist is for guidance only - always verify current requirements with the relevant authorities and seek professional advice where needed.